

SC126806 SC126806

County: los-angeles

Division: Civil Law and Motion

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At the outset, the court thanks all parties for the very helpful JOINT status conference report.

With that, the court is inclined to do the following.

First, the court is inclined to have the first trial be devoted to the ownership issue. The court will inquire whether that includes any voidable transfer issues. The court will seek a European Beverage waiver to the extent that this is a jury trial. The court would expect that such a waiver will be forthcoming. The court notes that the current trial date is October of this year.

Second, the pleadings need to be settled in the 2024 case. The court has gone through countless rounds of demurrers in the other cases. So the court will want plaintiff to submit the definitive complaint in that case. If it is consistent with the complaint in the lead case, the court would suggest that the court be able to order that the defendants would have demurred on similar grounds and that the court's rulings would be the same. In other words, to the extent that a demurrer was sustained and plaintiff seeks to re-allege the same thing in the 2024 case, let's agree that the order will be the same and not make everyone file new pleadings. And to the extent that the demurrer was overruled, let's agree that defendants can be deemed to have demurred and that the demurrer is deemed overruled. The goal is to get this at issue as quickly as we can.

Third, once the pleadings are settled, the court would be inclined to discuss consolidating the main case and the 2024 case. That way, discovery as to the main

case can go forward with regard to everything at issue in both cases, and we can agree that the discovery already taken in either case will apply fully to the other.

Fourth, the court is inclined to include May Doe's action with Jane Doe's action to the extent possible. One could debate that both ways, but the court would like to minimize the number of trials and at least some of the evidence does seem to overlap.

Fifth, the court is not excited about a stay of discovery against Jane Doe. If there is truly a medical reason for it, the court will consider it. But the court will need to see that evidence. The court also recognizes the burden that might be imposed by having active discovery ongoing while there is trial prep for the upcoming trial. But that issue might be better addressed by a CMO or separate motion.

Sixth, the court is not inclined to reconsider whether the UD case (which has apparently been dismissed) or the restraining order case is related to this case in the formal sense. But the parties might want to agree that discovery is nonetheless cross-admissible to reduce the amount of discovery that needs to be done. That would make sense to this court.

Seventh, the court would advise the parties to discuss a discovery referee. That would allow the parties to proceed with a more dedicated (time-wise) person to deal with discovery issues, including the order of depositions, discovery stays, motions to compel or compel further and the like. A referee is not free, of course. So the parties would have to agree. But it might well be worth the cost.